

**AUTHORIZATION TO DISCLOSE
PROTECTED HEALTH INFORMATION**

FOR

EILEEN MARY SOMMERS

DATED _____



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Authorization to Disclose Protected Health Information

Name: EILEEN MARY SOMMERS
Address: 525 Arabella Street
City: New Orleans State: LA Zip Code: 70115
Telephone: _____

Article One - Recitals and Terms

Section 1. Designation of Personal Representatives

I authorize all health care providers, including physicians, nurses, hospitals and all other persons and entities ("Covered Entities") who may have provided, or be providing, me with any type of health care, to disclose my Protected Health Information to the following parties and for the stated purposes, who shall have the status, power, authority, rights and title as my Personal Representative for all purposes as provided in the Health Insurance Portability and Accountability Act of 1996 ("HIPAA"), Pub. L. 104-191, 45 CFR §§ 160-164:

a. Spouse

My spouse, RONALD D. LIPTON, for any health-related purpose.

b. Agent under Advance Health Care Directive

The agent and successor agents under my advance health care directive for any health related purpose.

c. Agent under Power of Attorney

The agent and successor agents under my durable power of attorney for property for the purpose of determining my capacity as defined in the power of attorney or by governing law.

d. Partner

To any partner of any partnership or limited liability company of which I am a partner or member for the purpose of determining my capacity as defined in the governing instrument or by governing law.

e. Attorney

To my attorney for the purposes determining my capacity to make lifetime gifts, to execute business and estate planning documents, and whether, and to what extent, an



interdiction of my person or estate or other protective proceeding is necessary or desirable.

f. Curator

To my curator, if one is appointed for me, for the purpose of determining whether, and to what extent, an interdiction of my person or estate or other protective proceeding is necessary or desirable.

g. Receive Protected Health Information

I direct each health care provider or Covered Entity to release to my Personal Representatives any and all Protected Health Information as may be requested and deemed necessary by my Independent Executors in order for my Personal Representative to perform his or her duties as described above.

h. Execute Releases

I authorize my Personal Representative to execute any and all releases and other documents necessary in order to obtain disclosure to my Personal Representative of my patient records and other Protected Health Information that may be subject to and protected under HIPAA.

i. Appoint Patient Advocate

I authorize my Personal Representative to appoint a Patient Advocate for me, who may be any person so designated by my Personal Representative. My Patient Advocate shall have the same right to ask questions and receive information regarding my medical condition(s), treatment, and any proposed treatment as I and my Personal Representative would have, and the right to be in attendance to me at all times.

j. Assure Compliance

I authorize my Personal Representative to take any and all legal steps to ensure compliance with my instructions to provide access to my Protected Health Information. Such steps shall include resorting to any and all legal procedures in and out of the courts as may be necessary to enforce my rights under the law and shall include attempting to recover attorney fees against anyone who does not comply with this Authorization to Disclose Protected Health Information.

Article Two - Acknowledgments

Section 1. Re-Disclosure of Protected Health Information

I understand that once my Protected Health Information is disclosed pursuant to this Authorization to Disclose Protected Health Information, it is possible that it will be no longer protected by applicable



federal medical privacy regulations and could be re-disclosed by the person(s) or entity(ies) that receive it. I further understand that federal or state law may restrict re-disclosure of HIV / AIDS information, mental health information, and drug / alcohol abuse diagnosis, treatment, or referral information. Except as deemed necessary by my Personal Representative, I do not authorize such secondary disclosure of my Protected Health Information.

Section 2. Compensation

I understand that my Personal Representative may be receiving compensation for acting in the capacity designated above and may be compensated for obtaining my Protected Health Information.

Section 3. Refusal to Sign

I understand that I may refuse to sign this authorization and that my refusal to sign will not affect my ability to obtain medical treatment, or payment, or eligibility for benefits. I may inspect or copy any information used or disclosed under this authorization.

Section 4. Revocation

I understand that I may revoke this authorization in writing at any time. This Authorization to Disclose Protected Health Information shall expire two years after my date of death, unless it is revoked earlier.

Article Three - General Provisions

Section 1. Effective Immediately

This Authorization Form is effective immediately.

Section 2. Expiration

This Authorization Form will continue to be effective until the sooner of its revocation by me or until two years after my death.

Section 3. Durable

This Authorization Form will continue to be effective even though I become incapacitated.

Section 4. Photocopy

A photocopy or facsimile copy of this Authorization to Disclose Protected Health Information shall have the same effect as the original.



Article Four - Execution

By signing below, I acknowledge I have read and understand this Authorization to Disclose Protected Health Information.

THUS DONE AND PASSED on this ____ day of _____, _____, in the presence of the undersigned competent witnesses, who have hereunto signed their names with the Appearer and me, Notary Public, after due reading of the whole.

WITNESSES:

PRINTED NAME: _____

Eileen Mary Sommers
525 ARABELLA STREET
NEW ORLEANS, LA 70115

PRINTED NAME: _____

NOTARY PUBLIC
Printed Name: _____
Notary / Bar Roll Number: _____
_____, _____ County/Parish, _____
My Commission expires: _____

